

		Plaintiff Grigor Sahakyan moves to compel defendant BMW of North America, LLC, to provide further responses to Requests for Production 9, 10, 24, 26, 27 and 32 (Set One), is CONTINUED to 10/13/26 at 9:00 a.m. in Dept. C32. BMW failed to participate in the meet and confer process in good faith. Although in response to Plaintiff's initial meet and confer letter dated February 13, 2026, BMW's counsel engaged in a telephonic conference with Plaintiff's counsel, BMW's counsel failed to respond to the meet and confer letters subsequently sent by Plaintiff's counsel on February 26, 2026 and March 11, 2026. (Faulk Decl., ¶¶ 5, 6, 8, 9.) BMW is ordered to meet and confer in good faith either telephonically or in-person with Plaintiff to attempt to resolve each issue presented by Plaintiff's Motion. No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice.
3.	REVENUE CORP. VS. CORTEZ 2025-01531657	1. MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES 2. MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES 3. MOTION TO COMPEL PRODUCTION 4. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS Plaintiff Revenue Corp.'s motions to compel defendant John Cortez to provide further responses to Plaintiff's (1) Special Interrogatories, Set One; (2) Form Interrogatories, Set One; (3) Requests for Admission, Set One; and (4) Requests for Production of Documents, Set One, is COTINUED to 10/6/26 at 9:00 a.m., in Dept. C32. The Court will rule on Defendants Demurrer first and determine whether this action is subject to abatement or a stay before ruling on the discovery issues which may be mooted by the court's ruling on the Demurrer. Plaintiff to give notice.
4.	MORRIS VS. ASSA ABLOY ENTRANCE SYSTEMS US, INC. 2025-14998712	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff Tisa Morris' Motion for Leave to File a First Complaint is DENIED without prejudice.

Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code Civ. Proc., § 473, subd. (a)(1).)

“Motions for leave to amend are directed to the sound discretion of the judge” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).] “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Ibid.*, [citations omitted].)

California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier.

Plaintiff seeks an order granting leave to file a first amended complaint to assert two additional causes of action, interference and retaliation in violation of the California Family Rights Act (CFRA). Plaintiff contends there is no prejudice to Defendant as the two causes of action are based upon the same general facts as the original complaint and involve the same Defendant and incident, i.e., Plaintiff’s alleged wrongful termination.

Defendant contends the proposed amendments would be futile as Plaintiff was not eligible for CFRA leave and thus lacks standing to bring the claims. Specifically, Defendant refers to paragraph 17 of Plaintiff’s proposed amended complaint, which states in part:

Conveniently, though Defendant had previously ignored Plaintiff’s doctor’s recommendations that she take medical leave, Defendant’s decided to allow Morris to take medical leave *less than three weeks before Plaintiff would have qualified for protected CFRA leave*. Plaintiff is informed and believes, and based thereon alleges, that Defendant approved Plaintiff’s medical leave at this time to prevent her from qualifying for an additional 12 weeks of protected CFRA leave.

(Katz Decl., Ex. F [emphasis in original].)

California Code of Regulations, title 2, section 11094, subdivision (a) provides: “Any violation of CFRA or its implementing regulations constitutes interfering with, restraining, or denying the exercise of rights provided by CFRA.” Section 11094 further states “interfering” with the exercise of an employee’s rights includes “an

		action by a covered employer to avoid responsibilities under CFRA.” Accordingly, Defendant has not demonstrated Plaintiff’s proposed amendment would be futile. While Defendant also contends Defendant provided her with leave that exceeded the time CFRA would have required, that is a factual determination not appropriate for purposes of this motion. Defendant further contends Plaintiff has not complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiff’s counsel’s declaration submitted in support of the motion states on or about 1/12/26, the parties participated in mediation and “[t]hrough the course of preparing for mediation, Plaintiff learned additional facts supporting claims for interference and retaliation in violation of the CFRA.” (Katz Decl., ¶ 5.) Counsel’s statement that facts were discovered while “preparing for mediation” is ambiguous and does not adequately identify when such facts were discovered. Similarly, Plaintiff’s declaration does not address why the request for amendment was not made earlier.
5.	STS FOUNDATION, A NOT-FOR-PROFIT CORPORATION VS. READ 2025-01537238	1. MOTION TO QUASH SERVICE OF SUMMONS Defendant John Crist’s Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED. Crist is dismissed from the action for lack of personal jurisdiction. “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶] (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a)(1).) “[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that ‘minimum contacts’ exist between defendant and the forum state to justify imposition of personal jurisdiction.” (<i>Mihlon v. Sup.Ct.</i> (1985) 169 Cal.App.3d 703, 710.) The burden of proof is a preponderance of the evidence. (<i>Buchanan v. Soto</i> (2015) 241 Cal.App.4th 1353, 1362.) The evidence that jurisdiction is proper must be proved by admissible evidence. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 402.) Plaintiff has not opposed this Motion and, thus, has not submitted any admissible evidence of jurisdictional facts sufficient to establish personal jurisdiction over Crist. Thus, Plaintiff has failed to satisfy its burden of proof and jurisdiction cannot be established. Therefore, Crist’s Motion is granted.